

Spencer Retail Limited v. State of Uttar Pradesh

Allahabad High Court · Division Bench · 11 June 2025 · 2025:AHC:96354-DB · WRIT - C No. - 18379 of 2025 · **Writ disposed; restore on 10% deposit; consider Clause 6.14 application.**

HEADNOTE

Without deciding a challenged electricity bill on merits, the Court directed that if the consumer deposits 10% of the demand dated 07.05.2025 within ten days, supply shall be restored within 24 hours and a Clause 6.14 installment application shall be considered in accordance with law.

FACTUAL SUMMARY

Spencer Retail Limited assailed a bill dated 07.05.2025 in a writ petition before the Allahabad High Court. Though the bill was challenged on various grounds, counsel confined the prayer to benefits under Clause 6.14 of the UP Electricity Supply Code, 2005, seeking sympathetic consideration of an installment application. Counsel for the electricity department did not oppose, and stated that if the petitioner deposited 10% of the entire amount, installments would be considered and electricity would be restored.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installments and restoration on part payment

HOLDING

Without deciding the bill on merits, if the consumer deposits 10% of the amount demanded under the bill dated 07.05.2025 within ten days, the licensee shall restore the electricity connection within 24 hours of that deposit, and the consumer's application under Clause 6.14 of the UP Electricity Supply Code, 2005 shall be considered in accordance with law. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE BILL DATED 07.05.2025

Petitioner confined the prayer to Clause 6.14 installments; the Court did not go into the merits of the bill. ¶ 1-3